

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 4, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WHEELS FINANCIAL GROUP, LLC vs. ANTONIO CALLAHAN
Case No. CL25-07497**

Motion to Set Aside and Vacate Dismissal

TENTATIVE RULING

Plaintiff's motion to set aside dismissal pursuant to CCP Section 664.6 is denied without prejudice.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)]. (*Isbell v. County of Sonoma* (1978) 21 Cal.3d 61, 64-65).

In the present case, Defendant has not filed any responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail on Defendant. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

As to future motions, Plaintiff is directed to effect service of the motion papers in the manner required for service of summons and complaint, with such service completed at least 16 court days prior to the hearing date.

CITIIBANK N.A. vs. GLADINEJOSELL C. LOPEZ
Case No. CL25-09107

Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

Plaintiff's filings do not include a proof of service for the motion.

**CHRISTIAN IBARRA; ET AL. vs. CALIFORNIA DEPARTMENT OF
TRANSPORTATION; ET AL.**
Case No. CU24-01023

Demurrer to Third Amended Complaint

TENTATIVE RULING

Defendant Aecom Technical Services, Inc.'s unopposed demurrer to Plaintiff's third amended complaint is sustained without leave to amend.

JANE CRUZ vs. JPMORGAN CHASE BANK, N.A.
Case No. CU24-09312

Motion to Compel Further Responses

TENTATIVE RULING

Before moving to compel further responses to requests for production, the propounding party must first engage in meet and confer efforts over those responses. C.C.P. §2031.310(b)(2) [requiring a motion to compel further responses to be accompanied by a meet and confer declaration].

C.C.P. §2016.040(a) requires a meet and confer declaration to "state facts showing a reasonable and good faith attempt either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."

A propounding party must make every reasonable effort to informally resolve disputes over served responses, before filing a motion to compel further responses.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. Obregon v. Superior Court (1998) 67 Cal.App.4th 424 [factors to be considered include the complexity of the discovery issues, the past history

of the counsel on prior disputes, and to a certain extent, the judge's gut feeling; sending one brief letter 13 days prior to the deadline to file a motion to compel further responses did not constitute a sufficient "meet and confer" attempt].

The purposes behind the meet and confer requirement are to force the parties to reexamine their positions, and to narrow their disputes to the "irreducible minimum" before asking the court to resolve them. Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026), §8:1159, p. 67; See also Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1281, quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 [“‘informal resolution’ of discovery disputes ‘entails something more than bickering with (opposing counsel).’ Rather, the statute ‘requires that there be a serious effort at negotiation and informal resolution.’”]

While Plaintiff’s counsel adequately met and conferred as to Request for Production No. 9 and Special Interrogatory No. 1 prior to the filing of this motion, Defendant served further responses to the other six discovery requests at issue before this motion was filed, and Plaintiff’s counsel undertook no new meet and confer efforts after receiving those further responses. The service of those further responses started a new 45-day deadline to file a motion to compel even further responses to those further responses.

The motion is therefore denied as to Requests for Production 1, 7, and 11-14.

The motion is also denied as to Requests for Production No. 9 and Special Interrogatory No. 1. Defendant served further responses around the time of filing opposition to this motion, to trigger a new 45-day deadline and a new duty on the part of Plaintiff’s counsel to meet and confer, over those further responses.

The service of those amended responses to the latter two discovery requests did not necessarily render moot Plaintiff’s request for monetary sanctions. However, noting the inclusion in this motion of the other six discovery requests, and Plaintiff’s deposition cancellations of the employee witnesses identified in Defendant’s responses to the other two discovery requests, the court finds that other circumstances weigh against the imposition of any sanctions.

SMIRETH SWEET vs. MICHAEL GUNN
Case No. CU26-01273

Motion for Trial Preference

TENTATIVE RULING

Parties are to appear, with Plaintiff expected to explain her claim of monthly expenses in Solano County exceeding \$8,300, despite her other claims that she is no longer employed (and thus not commuting on a daily basis to Santa Clara County), as well as her latest admissions that she is receiving child support biweekly of over \$5,000; and

Defendants their assertions that they cannot complete discovery if this motion for trial preference were to be granted.

EDWIN A. LICHWA vs. HAROLD E. DURBIN; ET AL.
Case No. FCS058762

DURBIN's Motion for Summary Judgment

TENTATIVE RULING

Defendant HAROLD EDWIN DURBIN ("DURBIN") moves for summary judgment against Plaintiff EDWIN ALPHONSE LICHWA's ("EDWIN") complaint alleging negligence. EDWIN alleges, as relevant, that DURBIN's negligence caused the death of EDWIN's son NOAH ANTHONY LICHWA ("NOAH") in an all-terrain vehicle incident.

The court has not received opposition to the motion for summary judgment.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

If the party opposite a motion for summary judgment fails to file a separate statement of undisputed material facts, the court has discretion to grant the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) However, even where a party fails to file any opposition to a motion for summary judgment, the court may only grant the motion if the moving party has met its burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086.) A defendant's summary judgment motion in particular meets its burden of showing there is no merit to the cause(s) of action if the defendant shows that any element of the cause(s) of action cannot be proven or that there is a complete defense. (Code Civ. Proc., §437c, subd. (p)(2).)

Negligence. The elements of a negligence claim are duty, breach, and causation of damages. (*Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 178-179.) DURBIN's undisputed facts, based on EDWIN's deemed admissions, establish that no breach of any duty of care on his part caused EDWIN or NOAH harm. (DURBIN's Undisputed Material Facts #5-14.) EDWIN raises no triable issue of material fact in response.

Conclusion. DURBIN's motion for summary judgment is granted.

Department 7 is inviting you to a scheduled ZoomGov meeting.
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